

ADDENDUM

52.212-2, Evaluation—Commercial Products and Commercial Services. (Nov 2021)

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1. The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:
 - 1.1. Price.
 - 1.2. Technical Evaluation/Capability.
2. By submission of its offer, the offeror agrees to abide by all terms, conditions, and provisions included in the solicitation. Offers/Offerors that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be considered non-responsive and/or excluded from consideration. (IAW 52.212-1)
3. Price and technical evaluation/capability, when combined, are considered approximately equal in importance.
4. **Evaluation Factors and Process Defined:**
 - 4.1. First, the Government shall rank all responsive offers by price.
 - 4.1.1. An offeror's total evaluated price will include the total of all Contract Line Items as outlined in this solicitation or any associated attachments.
 - 4.1.2. The Government reserves the right to deem an offeror's overall quotation to be unresponsive in the event that incomplete, unreasonable, or unbalanced pricing is submitted.
 - 4.2. Second, the Government will look at the vendors technical capability and conduct a Technical Evaluation, starting with the lowest priced evaluated responsive offer, to determine if they are "Acceptable" or "Unacceptable," based on the offer/offeror meeting requirements as outlined in the solicitation or any associated attachments.
 - 4.2.1. "Acceptable" means: optional attachments and the description on the submitted quote or the Form 1449 DOES meet the specifications and requirements as described in the Performance Work Statement (PWS), or associated attachments.
 - 4.2.2. "Unacceptable" means: optional attachments and the description on the submitted quote or the Form 1449 DOES NOT meet the specifications described in the Performance Work Statement (PWS), or associated attachments. An unacceptable technical description will result in offer/offeror being removed from further consideration.

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- 4.2.3. The Technical Evaluation processing of offers will continue (in order by price) until the Government determines that at least three (3) offerors are determined to have an “Acceptable” technical rating.
 - 4.2.3.1. If there are less than 3 offers/offerors, the Government will perform a Technical Evaluation on ALL offers/offerors.
 - 4.2.3.2. If no offer/offeror is determined to be “Acceptable,” then no award will be made, and the Contracting Officer will re-evaluate the requirement.
- 4.3. Third, once the requisite number of offers/offerors have been evaluated for both Price and Technical Capability/Acceptance, the Government will make an award to the offer/offeror.
5. The Government reserves the right to communicate with all, some, or none of the offerors to address any issues, if necessary. The Government also reserves the right not to select a contractor, depending on the quality of the offers/offerors submitted and the availability of funds.
6. A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer’s specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.